Claim No. HT-2026-000087

IN THE HIGH COURT OF JUSTICE
BUSINESS AND PROPERTY COURTS OF ENGLAND AND WALES
TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Before Her Honour Judge Pemberton sitting in the Technology and Construction Court

Made at the case management conference on 8 October 2025

BETWEEN:

VERDANT ENERGY SYSTEMS LIMITED (Claimant) and **CALDERHALL CELLS LIMITED** (Defendant)

CASE MANAGEMENT ORDER

UPON the case management conference held on 8 October 2025

AND UPON hearing leading counsel for the Claimant and counsel for the Defendant

IT IS ORDERED THAT:

Disclosure

1. Extended Disclosure shall be given under Disclosure Model C in respect of the Issues for Disclosure set out in the agreed Disclosure Review Document. The parties shall give such disclosure by serving and exchanging disclosure by list and the disclosed documents by **12 December 2025**.

Witness evidence

2. Each party shall serve signed statements of its witnesses of fact, complying with Practice Direction 57AC, by **13 February 2026**. There shall be no supplemental statements without permission.

Expert evidence

3. Each party has permission to rely on the written evidence of one expert in the field of battery-cell electrochemistry and failure analysis. Reports shall be exchanged sequentially: the Claimant's by **27 March 2026** and the Defendant's by **15 May 2026**.

4. The experts shall hold a without-prejudice discussion and shall file a joint statement under CPR 35.12 identifying the issues on which they agree and disagree by **12 June 2026**.

Trial

5. The matter shall be listed for trial in a window opening on **19 April 2027**, with an estimated length of 5 days including judicial reading. A pre-trial review shall be listed not less than 6 weeks before the trial date.

6. Costs of and occasioned by this case management conference shall be costs in the case.

Dated 8 October 2025.

BY THE COURT